"What Should We Do First?"

Questions families ask when a parent needs long-term care now.

You're not the first family to ask what comes first when a parent needs long-term care and the advice doesn't agree. These are the questions that come up most at the planning stage, answered in general terms.

None of the answers is about Mom in particular, and none states the rule in your state. Where a question needs someone who knows her situation, the answer says who to ask.

1 What should we do first?

There isn't one order that fits every family, and a page can't set yours. What a family can do before anyone decides the order is get three short summaries onto paper: Mom's care, her finances, and what you've been told about Medicaid so far. The Consumer Financial Protection Bureau's guide for people managing a relative's money makes the same point: to make careful decisions, you need to know what the person owns and owes. [1]

> **ASK A PROFESSIONAL WHEN** you want to know which problem to work on first. Putting the actions in order is what the planning conversation with your Medicaid planner is for.

2 What needs to happen before we apply for Medicaid?

It depends on the state and on Mom's situation. In general terms, the federal Administration for Community Living says each state takes the applications and decides eligibility, and that an applicant fills out a form and provides documentation to verify general and financial requirements. Gathering records is something a family can start on. What else belongs before an application in Mom's case isn't something a guide can say. [2]

> **ASK A PROFESSIONAL WHEN** you're wondering what has to be in place before Mom's application goes in. Ask your Medicaid planner or an applications specialist.

3 How quickly can we start moving forward?

Your family's part can start today: gather the papers, write down what you know and what you've been told, and list your questions. How long the rest takes isn't something anyone can say in general. The Administration for Community Living says the best time to apply depends on a person's medical situation, marital status and the complexity of their finances. [2]

> **ASK A PROFESSIONAL WHEN** you want to know what the timing could look like for Mom. That is a question for your Medicaid planner or an applications specialist, who can look at her facts.

4 Everyone is telling us something different. Who's right?

A guide can't say, and it may be that each of them is describing some other family. The Administration for Community Living explains that states have considerable leeway in how they run Medicaid, so eligibility rules and covered services vary from state to state, and it describes long-term services as run through numerous funding streams and many agencies. Advice that fit a friend's parent may not fit Mom. Write down what each person said, who said it and whether they know her situation, and don't try to settle it yourselves. [3] [4]

> **ASK A PROFESSIONAL WHEN** two pieces of advice disagree about money, property or a legal document. Bring both to your Medicaid planner or an elder law attorney before acting on either.

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5 We're paying the facility ourselves every month. Is that unusual?

No. Medicare.gov says most people who enter nursing homes start by paying for their care out of pocket, and that Medicare and most health insurance, including Medigap, don't pay for long-term care services. It also notes that long-term care is different from skilled nursing facility care. If you aren't sure which kind Mom is receiving, that is a fair question for the facility. [5] [6]

> **ASK A PROFESSIONAL WHEN** you're not sure what a bill covers or who is paying which part. Ask the facility's business office, and bring the statements to your Medicaid planner.

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6 What is Medicaid, and does Mom qualify?

Medicare.gov describes Medicaid as a joint federal and state program that helps pay health care costs for people with limited income and, in some cases, resources, who meet other requirements. Unlike Medicare, it does pay for custodial care in nursing homes and at home. Whether Mom qualifies is decided by her state, not by a guide, a friend or a worksheet, and the state also decides separately whether a person qualifies for long-term care services. [5] [3]

> **ASK A PROFESSIONAL WHEN** you want to understand where Mom stands. Go through her situation with your Medicaid planner; the decision itself belongs to the state Medicaid agency.

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7 What is “a plan,” actually?

In this roadmap it is a written page: the actions, who is responsible for each, the order they go in, the professional reviews, and a target application date set with professional guidance. It is built with your Medicaid planner from Mom's facts. Writing it down has an ordinary benefit as well. The Family Caregiver Alliance notes that a written record of what a family agreed can be a helpful reminder for everyone. [7]

> **ASK A PROFESSIONAL WHEN** the family can't agree on who does what. The Family Caregiver Alliance says social workers and discharge planners in hospitals and nursing homes can help facilitate a family meeting, or refer you to someone who can.

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8 Who is involved in a plan, and what does each one do?

In this roadmap, your Medicaid planner handles education, organization, planning support and coordination. Legal advice and legal documents belong to an elder law attorney, insurance and investment products belong to licensed professionals, and the application is prepared with an applications specialist. The Consumer Financial Protection Bureau suggests checking any professional's qualifications, since many must be licensed or registered by a government agency. [1]

> **ASK A PROFESSIONAL WHEN** you can't tell which professional a question belongs to. Write it down and ask your Medicaid planner where it goes.

9 Do we need a lawyer?

Some parts of a plan belong to one. The Administration for Community Living lists preparing power of attorney documents and exploring a person's qualifications for Medicaid among the things elder law attorneys do, and says most people are unable to handle the complexity of planning their medical and financial futures on their own. Whether your family needs an attorney, and for what, depends on Mom's situation. The same page notes that free legal support may be available through federally funded legal assistance programs. [8]

> **ASK A PROFESSIONAL WHEN** a decision involves signing or changing a legal document, or moving money or property. That question belongs to an elder law attorney.

10 Can one of us handle the paperwork for Mom?

The Administration for Community Living says a person may apply for Medicaid themselves or designate someone else, such as a family member, an attorney or a friend. Whoever applies should be familiar with the situation, able to answer the eligibility questions, and have access to the financial records. AARP adds that a family caregiver needs permission to act on a loved one's behalf, both financially and medically. [2] [9]

> **ASK A PROFESSIONAL WHEN** a bank, the facility or the agency asks what authority you have to act for Mom and you aren't sure. That is a question for an elder law attorney.

What this guide doesn't do

It doesn't answer any question about Mom herself. Anything that depends on her state, her finances or her legal papers needs a professional who knows her situation, and nothing here is legal, financial or tax advice.

Ready for the next step?

You have plain answers to the general questions, and you know which ones to take to a professional. The planning interview is where the questions become about your family: it walks you through your situation and gives you a free planning report you can bring to any conversation about paying for care.

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WHERE THIS COMES FROM

1. Consumer Financial Protection Bureau, Managing someone else's money: Help for agents under a power of attorney
2. Administration for Community Living (LongTermCare.gov), Applying for Medicaid
3. Administration for Community Living (LongTermCare.gov), Medicaid
4. Administration for Community Living, Aging and Disability Resource Centers Program/No Wrong Door System
5. Medicare.gov (Centers for Medicare & Medicaid Services), How can I pay for nursing home care?

6. Medicare.gov (Centers for Medicare & Medicaid Services), Long-term care
7. Family Caregiver Alliance, Holding a Family Meeting
8. Administration for Community Living (LongTermCare.gov), Will I Need a Lawyer?
9. AARP, A Legal Checklist for Family Caregivers
